

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3637

By: Lawson

AS INTRODUCED

An Act relating to children; amending 10A O.S. 2021, Sections 1-9-102, 1-9-103, 1-9-104, 1-9-104a, and 1-9-104b, which relate to the Oklahoma Children's Code; providing that the lead agency for child abuse multidisciplinary review team shall be certified or qualified; providing that the district attorney shall choose and the team shall provide input and consent for the lead agency; providing duties for the team; updating references; providing that law enforcement and staff shall conduct joint investigations; modifying team functions; directing an entity to review the teams; directing the Department of Human Services to work in partnership with designated entity; modifying terms relating to the Child Abuse Multidisciplinary Team Account; authorizing certain entity to administer certain funds; authorizing the Department to contract with qualifying entity; modifying who may promulgate rules; creating the Oklahoma Multidisciplinary Team Council; providing for membership; providing requirements for membership; providing duties of Council; directing Council to elect chair and vice-chair; providing that a quorum of the Council may carry out business; repealing 10A O.S. 2021, Sections 1-9-103a and 1-9-103b, which relate to the Child Abuse Multidisciplinary Team Account Fund; repealing 63 O.S. 2021, Section 1-227.9, which relates to the Child Abuse Training and Coordination Council; providing for codification; and providing an effective date.

1 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

2 SECTION 1. AMENDATORY 10A O.S. 2021, Section 1-9-102, is
3 amended to read as follows:

4 Section 1-9-102. A. 1. ~~In coordination with the Oklahoma~~
5 ~~Commission on Children and Youth, each~~ Each district attorney shall
6 develop a child abuse multidisciplinary ~~child abuse~~ review team in
7 each district attorney's respective county ~~of the district attorney~~
8 or in a contiguous group of counties.

9 2. The lead agency for the team shall be a certified child
10 advocacy center or another qualified agency chosen by the ~~members of~~
11 ~~the team~~ district attorney with input and consent from the child
12 abuse multidisciplinary team members. The team shall review,
13 provide input, and intervene in reports involving child sexual abuse
14 or child physical abuse or neglect.

15 B. The child abuse multidisciplinary ~~child abuse~~ team members
16 shall include, but not be limited to:

17 1. Mental health professionals licensed pursuant to the laws of
18 this state or licensed professional counselors;

19 2. Police officers or other law enforcement agents with a role
20 in, or experience or training in child abuse and neglect
21 investigation;

22 3. Medical personnel with experience in child abuse and neglect
23 identification;

24

1 4. Child protective services workers within the Department of
2 Human Services;

3 5. ~~Multidisciplinary child~~ Child abuse multidisciplinary team
4 coordinators, or Child Advocacy Center personnel; and

5 6. The district attorney or assistant district attorney.

6 C. 1. ~~To the extent that resources are available to each of~~
7 ~~the various multidisciplinary child abuse teams throughout the~~
8 ~~state, the~~ The functions of the team shall include, but not be
9 limited to, the following specific functions:

10 a. ~~whenever feasible,~~ law enforcement and child welfare
11 staff shall conduct joint investigations ~~in an effort~~
12 ~~to effectively respond to child abuse reports, as~~
13 outlined in each written protocol in a timely manner,
14 into reports of child sexual and physical abuse or
15 neglect,

16 b. develop or adopt a written protocol for investigating
17 child sexual abuse and child physical abuse or neglect
18 cases ~~and for interviewing child victims. The purpose~~
19 ~~of the protocol shall be~~ to ensure coordination and
20 cooperation between all agencies involved so as to
21 increase the efficiency in handling such cases and to
22 minimize the stress created for the allegedly abused
23 child by the legal and investigatory process. ~~In~~
24 ~~addition, each team shall develop confidentiality~~

- ~~statements and interagency agreements signed by member agencies that specify the cooperative effort of the member agencies to the team,~~
- c. ~~increase communication and collaboration among the professionals responsible for the reporting, investigation, prosecution and treatment of child abuse and neglect cases,~~
 - d. ~~eliminate duplicative efforts in the investigation and the prosecution of child abuse and neglect cases,~~
 - e. ~~identify gaps in service or all untapped resources within the community to improve the delivery of services to the victim and family~~ develop or adopt a written protocol for interviewing children involved in investigations and the use of child advocacy centers for forensic interviews,
 - d. develop or adopt confidentiality statements and interagency agreements signed by member agencies that specify the cooperative effort of the member agencies to the team,
 - e. identify gaps in service or all untapped resources within the community to improve the delivery of services to the victim and family,
 - f. ~~encourage the development of~~ develop expertise through training. Each team member and those conducting child

1 abuse investigations and interviews of child abuse
2 victims shall be trained in the multidisciplinary team
3 approach, conducting legally sound and age-appropriate
4 interviews, effective investigation techniques and
5 joint investigations as provided through ~~the State~~
6 ~~Department of Health, the Commission on Children and~~
7 ~~Youth~~ a nationally accredited state chapter of
8 Oklahoma Children's Advocacy Centers, or other
9 resources as approved by the Child Abuse
10 Multidisciplinary Team Council,

11 g. ~~formalize~~ adopt a standardized case review process ~~and~~
12 ~~provide data as requested to the Commission for~~
13 ~~freestanding teams, and~~

14 h. ~~standardize investigative procedures for the handling~~
15 ~~of child abuse and neglect cases~~ provide data as
16 requested to the Child Abuse Multidisciplinary Team
17 Council.

18 2. All investigations of child sexual abuse and child physical
19 abuse or neglect and interviews of child abuse or neglect victims
20 shall be carried out by appropriate personnel using the protocols
21 and procedures specified in this section.

22 3. ~~If trained personnel are not available in a timely fashion~~
23 ~~and, in the judgment of a law enforcement officer or the Department~~
24 ~~of Human Services, there is reasonable cause to believe a delay in~~

1 ~~investigation or interview of the child victim could place the child~~
2 ~~in jeopardy of harm or threatened harm to a child's health or~~
3 ~~welfare, the investigation may proceed without full participation of~~
4 ~~all personnel. This authority applies only for as long as~~
5 ~~reasonable danger to the child exists. A reasonable effort to find~~
6 ~~and provide a trained investigator or interviewer shall be made.~~

7 4. ~~Freestanding multidisciplinary child~~ Child abuse
8 multidisciplinary teams shall be approved by ~~the Commission~~ an
9 entity identified as a nationally accredited state chapter of
10 Oklahoma Children's Advocacy Centers in partnership with the Child
11 Abuse Multidisciplinary Team Council. ~~The Commission shall conduct~~
12 ~~an~~ An annual review of ~~freestanding~~ child abuse multidisciplinary
13 teams shall be conducted to ensure that the teams are functioning
14 effectively. Teams not meeting the minimal standards as promulgated
15 by the ~~Commission~~ Child Abuse Multidisciplinary Team Council shall
16 be removed from the list of functioning teams in the state.

17 D. 1. A multidisciplinary child abuse team may enter into an
18 agreement with the Child Death Review Board within the Oklahoma
19 Commission on Children and Youth and, in accordance with rules
20 promulgated by the Oklahoma Commission on Children and Youth,
21 conduct case reviews of deaths and near deaths of children within
22 the geographical area of that multidisciplinary child abuse team.

23 2. Any child abuse multidisciplinary ~~child abuse~~ team reviewing
24 deaths and near deaths of children shall prepare and make available

1 to the public, on an annual basis, a report containing a summary of
2 the activities of the team relating to the review of the deaths and
3 near deaths of children and a summary of the extent to which the
4 state child protection system is coordinating with foster care and
5 adoption programs and whether the state is efficiently discharging
6 its child protection responsibilities. The report shall be
7 completed no later than December 31 of each year.

8 E. Nothing in this section shall preclude the use of hospital
9 team reviews for client-specific purposes and multidisciplinary
10 teams, either of which were in existence prior to July 1, 1995;
11 provided, however, such teams shall not be subject to the provisions
12 of paragraph 1 of subsection A of this section.

13 F. ~~1.~~ Child advocacy centers shall be classified, based on the
14 child population of a district attorney's district, as follows:

15 ~~a. nonurban~~

16 1. Nonurban centers in districts with child populations that
17 are less than sixty thousand (60,000) ~~;~~

18 ~~b. midlevel~~

19 2. Midlevel nonurban centers in districts with child
20 populations equal to or greater than sixty thousand (60,000), but
21 not including Oklahoma and Tulsa Counties ~~;~~ and

22 ~~c. urban~~

23 3. Urban centers in Oklahoma and Tulsa Counties.
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1 ~~2. The multidisciplinary child abuse team used by the child~~
2 ~~advocacy center for its accreditation shall meet the criteria~~
3 ~~required by a national association of child advocacy centers and, in~~
4 ~~addition, the team shall:~~

5 ~~a. choose a lead agency for the team,~~

6 ~~b. intervene in reports involving child sexual abuse and~~
7 ~~may intervene in child physical abuse or neglect,~~

8 ~~c. promote the joint investigation of child abuse reports~~
9 ~~between law enforcement and child welfare staff, and~~

10 ~~d. formalize standardized investigative procedures for~~
11 ~~the handling of child abuse and neglect cases.~~

12 G. ~~Multidisciplinary child abuse~~ Child abuse multidisciplinary
13 teams and child advocacy centers shall have full access to any
14 service or treatment plan and any personal data known to the
15 Department which is directly related to the implementation of this
16 section.

17 H. Each member of the team shall be responsible for protecting
18 the confidentiality of the child and any information made available
19 to such person as a member of the team. The child abuse
20 multidisciplinary team and any information received by the team
21 shall be exempt from the requirements of Sections 301 through 314 of
22 Title 25 of the Oklahoma Statutes and Sections 24A.1 through 24A.31
23 of Title 51 of the Oklahoma Statutes.

SECTION 2. AMENDATORY 10A O.S. 2021, Section 1-9-103, is amended to read as follows:

Section 1-9-103. A. 1. There is hereby created in the Department of Human Services a revolving fund to be designated the "Child Abuse Multidisciplinary Account".

2. The account shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the Department pursuant to the provisions of this section and Section 1-9-104 of this title.

3. All monies accruing to the credit of the fund are hereby appropriated and shall be budgeted and expended by the Department for the purposes provided in Sections 1-9-102 and 1-9-104 of this title.

4. Expenditures from the account shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

B. The account shall be administered by the Department for the benefit of children of Oklahoma and made available to eligible:

1. ~~Coordinated~~ Functioning multidisciplinary child abuse teams;
2. Nonurban child advocacy centers;
3. ~~Mid-level~~ Midlevel nonurban child advocacy centers; and
4. Urban child advocacy centers.

1 C. 1. The Child Abuse Multidisciplinary Account shall consist
2 of:

- 3 a. all monies received by the Department pursuant to the
4 provisions of Section 1-9-104 of this title,
- 5 b. interest attributable to investment of money in the
6 Account, and
- 7 c. money received by the Department in the form of gifts,
8 grants, reimbursements, or from any other source
9 intended to be used for the purposes specified or
10 collected pursuant to the provisions of this section
11 and Section 1-9-102 of this title.

12 2. The monies deposited in the Child Abuse Multidisciplinary
13 Account shall at no time become monies of the state and shall not
14 become part of the general budget of the Department or any other
15 state agency. Except as otherwise authorized by this section and
16 Section 1-9-104 of this title, no monies from the Account shall be
17 transferred for any purpose to any other state agency or any account
18 of the Department or be used for the purpose of contracting with any
19 other state agency or reimbursing any other state agency for any
20 expense.

21 SECTION 3. AMENDATORY 10A O.S. 2021, Section 1-9-104, is
22 amended to read as follows:
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1 Section 1-9-104. A. The Department of Human Services, in
2 partnership with a designated entity, shall allocate monies
3 available in the Child Abuse Multidisciplinary Account (CAMA) to:

4 1. ~~The Child Abuse Multidisciplinary Team Account (CAMTA) Fund~~
5 ~~created by Section 1-9-103a of this title. Monies made available to~~
6 ~~the CAMTA shall be used for the purposes of funding one One~~
7 ~~functioning freestanding child abuse multidisciplinary ~~child abuse~~~~
8 ~~team in each county of this state, utilizing the funding~~
9 ~~distributions as provided in subsection B of this section, certified~~
10 ~~by the Child Abuse Multidisciplinary Team Council;~~

11 2. One hospital team pursuant to subsection E of Section 1-9-
12 102 of this title; and

13 3. One child advocacy center, accredited by the National
14 Children's Alliance, per district attorney's district. A child
15 advocacy center shall:

16 a. be eligible for Child Abuse Multidisciplinary Account
17 (CAMA) funding upon accreditation by the National
18 Children's Alliance,

19 b. secure a third-year interim review to determine
20 whether the child advocacy center continues to meet
21 the National Children's Alliance standards in effect
22 at the time of its last accreditation. If a child
23 advocacy center fails the third-year review, the
24 center shall remain eligible for CAMA funding, but

1 shall have another review conducted in the fourth
2 year. If the child advocacy center fails the fourth-
3 year review, the center shall be ineligible to receive
4 CAMA funding until such time as the center receives
5 reaccreditation from the National Children's Alliance,
6 and

7 c. remain the center for the district attorney's district
8 as long as the center is accredited and eligibility is
9 maintained pursuant to the provisions of Section 1-9-
10 102 of this title. If a center does not remain
11 eligible pursuant to the provisions of Section 1-9-102
12 of this title, endorsement by the district attorney as
13 the child advocacy center for the district may be
14 sought by any entity beginning with the calendar year
15 after the center is determined to be ineligible. The
16 two centers in district number (4) and district number
17 (13) that were accredited as of May 17, 2005, shall
18 continue to receive funding at the nonurban level.
19 Should one of the exempted centers close or no longer
20 meet the criteria for a child advocacy center pursuant
21 to the provisions of Section 1-9-102 of this title,
22 the center shall not be allowed to reopen in that
23 district or to receive CAMA funds. The remaining
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center shall become the sole child advocacy center for the district attorney's district.

B. Funding distribution pursuant to the provisions of this section shall be determined:

1. By multiplying the number of applicants in each category by the corresponding weight as follows:

- a. ~~freestanding~~ functioning child abuse multidisciplinary ~~child abuse~~ team - 1,
- b. hospital team - 1,
- c. nonurban centers - 4,
- d. ~~mid-level~~ midlevel nonurban centers - 6, and
- e. urban centers - 24;

2. Adding together the weighted results for all categories;

3. Dividing the weighted result for each category by the sum of the weighted results for all categories; and

4. Equally distributing funding to each applicant in the corresponding category based on the amounts obtained by multiplying the total available funding by the calculated percentages. ~~The total amount for all freestanding multidisciplinary teams as determined by the formula provided in this subsection shall be transferred to the Child Abuse Multidisciplinary Team Account (CAMTA) Fund established by Section 1-9-103a of this title and contracts with each freestanding multidisciplinary team shall be completed no later than January 1 of each year.~~

1 ~~During state fiscal year 2019, the Oklahoma Commission on~~
2 ~~Children and Youth may disburse to each freestanding~~
3 ~~multidisciplinary team the remaining contracted amount of the~~
4 ~~freestanding multidisciplinary team award. The freestanding~~
5 ~~multidisciplinary team shall provide the Commission with monthly~~
6 ~~documentation of expenses as well as activity data and continue~~
7 ~~providing such documentation thereafter. Beginning January 1, 2020,~~
8 ~~and each year thereafter, the Commission may disburse the contracted~~
9 ~~amount at the beginning of the calendar year to freestanding~~
10 ~~multidisciplinary teams that are functioning effectively as~~
11 ~~determined by the Commission pursuant to Section 1-9-102 of this~~
12 ~~title.~~

13 C. By January 31, 2003 2027, and by January 31 of each year
14 thereafter, the Department shall partner with a designated entity to
15 disburse monies from the Child Abuse Multidisciplinary Account to
16 eligible child abuse multidisciplinary teams and child advocacy
17 centers. A child abuse multidisciplinary team or child advocacy
18 center shall be in compliance with the provisions of Section 1-9-102
19 of this title to be eligible for Child Abuse Multidisciplinary
20 Account funding. The disbursement shall be a single, annual
21 disbursement, for the collection period of the preceding year
22 beginning October 1 through September 30.

23 ~~D. A report issued by the Oklahoma Commission on Children and~~
24 ~~Youth to the Oklahoma Legislature outlining performance measures for~~

1 ~~all multidisciplinary teams, including those associated with child~~
2 ~~advocacy centers, and recommendations on the funding formula~~
3 ~~provided for in this section shall be transmitted to the Oklahoma~~
4 ~~Legislature no later than December 31, 2017. The Department, the~~
5 ~~Commission, and the Children's Advocacy Centers of Oklahoma, Inc.,~~
6 and the Child Abuse Multidisciplinary Team Council shall meet
7 annually to review and certify the amount of CAMA and CAMTA funds to
8 be disbursed.

9 E. ~~A child advocacy center may carry over funding for a period~~
10 ~~of one (1) year after allocation, such one-year period to begin in~~
11 ~~January and end in December of the same year; provided, however,~~
12 ~~funds not used within twenty-four (24) months of the original~~
13 ~~allocation will be deducted from the contract amount for the next~~
14 ~~contract year. If a center is ineligible for funding in an upcoming~~
15 ~~year, unused funds from the current or previous years shall be~~
16 ~~returned to the CAMA Fund for use in subsequent years. Funds not~~
17 ~~used by a freestanding team by the end of the contract period shall~~
18 ~~revert to, and be deposited in, the CAMA Fund~~ A child abuse
19 multidisciplinary team or child advocacy center may carry over
20 funding for a period of one (1) year after allocation, with such
21 one-year period to begin in January and end in December of the same
22 year; provided, however, funds not used within twenty-four (24)
23 months of the original allocation shall be returned to the CAMA
24 account. If a child abuse multidisciplinary team or child advocacy

1 center is ineligible for funding in an upcoming year, unused funds
2 from the current or previous years shall be returned to the CAMA
3 account for use in subsequent years.

4 ~~F. The Commission is hereby authorized to receive five percent~~
5 ~~(5.0%) in administrative costs from the CAMTA Fund. The Department~~
6 of Human Services is hereby authorized to receive one-half of one
7 percent (0.5%) in administrative costs from the CAMA fund. In
8 partnership with the Department, an eligible entity identified as a
9 nationally accredited state chapter of Oklahoma Children's Advocacy
10 Centers is hereby authorized to administer the CAMA fund.

11 SECTION 4. AMENDATORY 10A O.S. 2021, Section 1-9-104a,
12 is amended to read as follows:

13 Section 1-9-104a. ~~The Oklahoma Commission on Children and Youth~~
14 ~~shall~~ Department of Human Services is hereby authorized to contract
15 with a qualifying entity identified as a nationally accredited state
16 chapter of Oklahoma Children's Advocacy Centers to administer Child
17 Abuse Multidisciplinary Account funds and a qualifying entity
18 identified as a nationally accredited state chapter of Oklahoma
19 Children's Advocacy Centers is authorized to contract with eligible
20 providers as authorized by this act.

21 SECTION 5. AMENDATORY 10A O.S. 2021, Section 1-9-104b,
22 is amended to read as follows:

23 Section 1-9-104b. ~~The Oklahoma Commission on Children and Youth~~
24 ~~and the Department of Human Services~~ Child Abuse Multidisciplinary

1 Team Council shall promulgate rules to implement the provisions of
2 this act.

3 SECTION 6. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1-9-102b of Title 10A, unless
5 there is created a duplication in numbering, reads as follows:

6 A. There is hereby created the Child Abuse Multidisciplinary
7 Team Council.

8 B. The Oklahoma District Attorneys Council shall appoint a
9 Child Abuse Multidisciplinary Team Council which shall be composed
10 of nine (9) members, as follows:

11 1. One member shall be the child welfare director within the
12 Department of Human Services;

13 2. One member shall be a district attorney;

14 3. One member shall be a representative of the Council on Law
15 Enforcement Education and Training (CLEET);

16 4. One member shall be a representative of an entity identified
17 as a nationally accredited state chapter of Oklahoma Children's
18 Advocacy Centers;

19 5. One member shall be a representative of a statewide medical
20 association and shall be a member of a state chapter of a national
21 academy of pediatrics;

22 6. One member shall be a representative of the Oklahoma Indian
23 Child Welfare Association;

24

1 7. One member shall be a representative of an advisory task
2 force on child abuse and neglect;

3 8. One member shall be a representative of the Oklahoma
4 Commission on Children and Youth; and

5 9. One member shall be a person with lived experience of the
6 child welfare system in Oklahoma as appointed by the Attorney
7 General.

8 C. Each member of the Child Abuse Multidisciplinary Team
9 Council is authorized to have one designee.

10 D. The appointed members shall be persons having expertise in
11 multidisciplinary team joint investigation and the dynamics,
12 identification, and treatment of child abuse and neglect and child
13 sexual abuse.

14 E. The Child Abuse Multidisciplinary Team Council shall:

15 1. Establish objective criteria and guidelines for
16 multidisciplinary investigations and, as appropriate for each
17 discipline, discipline-specific training on child abuse and neglect
18 for professionals with responsibilities affecting children, youth,
19 and families;

20 2. Review curricula and make recommendations to state agencies,
21 professional organizations, and associations regarding available
22 curricula and curricula having high standards of professional merit;
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1 3. Review curricula regarding child abuse and neglect used in
2 law enforcement officer training by CLEET and make recommendations
3 regarding the curricula to CLEET;

4 4. Cooperate with and assist professional organizations and
5 associations in the development and implementation of ongoing
6 training programs and strategies to encourage professionals to
7 participate in such training programs;

8 5. Make reports and recommendations regarding the continued
9 development and improvement of multidisciplinary team joint
10 investigations to the Oklahoma Legislature;

11 6. Prepare and issue a model protocol for multidisciplinary
12 teams regarding the investigation and prosecution of child sexual
13 abuse, child physical abuse, and neglect cases;

14 7. Review and approve protocols prepared by the local child
15 abuse multidisciplinary teams;

16 8. Advise multidisciplinary teams on team development;

17 9. Determine data collection protocol and collect data on the
18 operation and cases reviewed by the child abuse multidisciplinary
19 teams;

20 10. Collect data from the Oklahoma Commission on Children and
21 Youth Child Death Review Board and Post Adjudication Review Board;

22 11. Issue annual reports;

23 12. Annually approve the list of functioning multidisciplinary
24 teams in the state; and

1 13. Meet annually with the Department, Children's Advocacy
2 Centers of Oklahoma, Inc., and the Child Abuse Multidisciplinary
3 Team Council to review and certify the amount of CAMA funds to be
4 disbursed.

5 F. The Child Abuse Multidisciplinary Team Council shall elect a
6 chair and vice-chair at every first annual meeting.

7 G. Five members of the Child Abuse Multidisciplinary Team
8 Council shall constitute a quorum and may carry out any business by
9 a simple majority vote of a quorum.

10 SECTION 7. REPEALER 10A O.S. 2021, Sections 1-9-103a and
11 1-9-103b, are hereby repealed.

12 SECTION 8. REPEALER 63 O.S. 2021, Section 1-227.9, is
13 hereby repealed.

14 SECTION 9. This act shall become effective November 1, 2026.
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16 60-2-13989 CMA 12/15/25
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